



FOR YOUTH DEVELOPMENT®
FOR HEALTHY LIVING
FOR SOCIAL RESPONSIBILITY

YMCA of Southern Arizona FACILITY USE AGREEMENT

YMCA of Southern Arizona
P.O. Box 1111
Tucson, AZ 85702

YMCA Facility _____ Address _____

YMCA Contact Person _____ Email _____

This agreement is made this _____ day of _____, _____, by and between the YMCA of Southern Arizona ("YMCA") and _____ (Contact Name)
_____ (Organization)
_____ (Mailing Address)
_____ (phone number) _____ (email) "User".

YMCA hereby grants to "User" to lease portions of the YMCA location described below ("Facility"):

Facility or Camp located at:

User Period-Start / End Date:

Permitted Uses / Number of Persons:

Facility Use Area(s):

Day(s) of the week / Dates / Times:

Will YMCA pools be used as part of rental? _____ Yes _____ No

(Please note additional fees will be assessed. YMCA of Southern Arizona lifeguards are required during all YMCA pool rentals).

User hereby accepts and agrees to abide by all of the terms and conditions of this Agreement and of the YMCA Facility Use Agreement, the contents of which are subject to change from time to time at YMCA's sole discretion. User acknowledges receipt of a copy of the current Facility Use Agreement.

Notwithstanding the foregoing, YMCA may immediately terminate this Agreement in the event of a material breach by User. Termination shall not relieve either party of its obligations incurred prior to such termination.



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USER FEES & OTHER PAYMENTS

In consideration of the agreement granted to User by YMCA, User agrees to the following:

\$_____ (This amount includes program area fees)

payable as follows:

\$ _____ deposit due upon execution of this agreement;

covering _____ (Start Date) to _____ (End Date)

\$ _____ damage deposit due upon execution of this agreement

The damage deposit will be refunded to User within 30 days following the end of the agreement period to the extent not required to repair damage caused by User during the agreement period or to provide cleanup because of User's failure to do so.

Failure of User to pay any of the above amounts when due shall be grounds for cancellation of this Agreement by YMCA.

CANCELLATION

If for any reason this contract must be cancelled, the cancellation must be made _____ days prior to the event or the User will forfeit the \$_____ deposit. A cancellation made within _____ days of your scheduled rental will incur a fee of 50% of your total booking including the deposit \$_____. If the balance is not paid by _____, the YMCA shall have the right to cancel the scheduled date.

In the event that the YMCA needs to cancel your reservation due to unforeseen circumstances, any deposits or fees paid will be credited to your account or eligible for a full refund.

For Office Use Only:

____ Signed Facility Use Agreement

____ Certificate of Insurance naming YMCA of Southern Arizona

____ Signed YMCA of Southern Arizona 3rd Party Code of Conduct



TERMS AND CONDITIONS OF USE

1. **Insurance.** User shall provide YMCA, no less than two business days prior to commencement of the License Period, a certificate of insurance evidencing commercial general liability insurance with an insurer acceptable to YMCA in the amount of not less than **\$1,000,000 per occurrence and \$2,000,000 aggregate, \$1,000,000 Sexual Abuse & Molestation and naming YMCA of Southern Arizona as an additional insured at 60 W Alameda St. Tucson, AZ 85701**, and such other evidence of insurance coverage as YMCA may request in writing.

2. **Criminal Background Checks.** User shall conduct **Multi-State Criminal Records checks** on each of its employees who will perform services pursuant to this Agreement. The criminal background checks shall be conducted by User prior to performing any services on YMCA property and shall not assign any employee to provide services if (1) said employee has been convicted contributing to the delinquency of a minor; (2) said employee has been convicted of a sex crime; (3) said employee has been convicted of any misdemeanor or felony involving crimes against children or (4) said employee has been convicted of gang-related or organized crime activity. In addition, YMCA may conduct additional criminal record checks any time at its sole expense. YMCA will not seek reimbursement of this additional expense from User or User employees who are the subject of such checks. If YMCA exercises this right to conduct additional criminal records checks, User agrees to provide within fifteen (15) days of the request the full name, date of birth, and state of residency for the past 10 years for any User employees. YMCA reserves the right to prohibit any User employee from delivering goods or providing services under this Contract if YMCA determines, in its sole discretion, that such personnel has not undergone a criminal record and background check in accordance with this Section or the results of such criminal background check may pose a threat to the safety or well-being of participants, personnel or others.

3. **Sex Offender Registry Checks.** User shall conduct, or arrange to have conducted, **Sexual Offender Registry checks** on each of its employees who will engage in any service on or deliver goods to YMCA property. Said checks shall include at a minimum checks of the State Sex Offender and Public Protection Registration Program, the State Sexually Violent Predator Registration Program and the National Sex Offender Registry ("the Registries"). The parties acknowledge that all of the required registry checks may be completed at no cost by accessing the United States Department of Justice Sex Offender Public Website at <http://www.nsopw.gov/>. User shall not assign any employee to provide services on YMCA property if they appear on any of the aforementioned registries.
Registered sex offenders are not permitted on YMCA property.

4. **Child Abuse Prevention.** Users will review and sign the organization's Code of Conduct for working with consumers. Users shall require all individuals responsible for consumers have received some minimal abuse prevention training (which can include the identification, prevention, and reporting of sexual abuse). Users understand and provide written acknowledgement of the organization's internal and external reporting requirements. Users are required to report policy violations and incidents or allegations of sexual misconduct back to the organization, and to follow mandated reporting requirements.

5. **Indemnification.** User shall, and hereby does, agree to indemnify, defend, protect and hold YMCA harmless for, from and against any and all loss, damage, liability, cost or expense to persons or property arising from or in connection with User's use of the Facility and any activities of User or its invitees thereon (i) during the License Period. and (ii) before and after the License Period to the extent User is granted access to the Facility before or after the License Period for preparation, set up or removal of User's property. User shall defend and indemnify the organization for claims stemming from sexual misconduct and molestation. User shall promptly notify YMCA of any event which has resulted, or may result, in loss, damage, liability, cost or expense of any kind or nature.

6. **Restricted Activities.** User's participants, invitees and guests shall not bring or consume alcoholic beverages or illegal drugs in the Facility or on the Facility grounds. User shall abide by and enforce with its participants, invitees and guests the YMCA non-smoking policy within the Facility and on the Facility grounds at all times. User's participants, invitees and guests, other than sworn law enforcement officers, shall not bring firearms or other weapons within the Facility or on the Facility grounds.

7. **Food and Beverages.** User will have sole responsibility for providing any food or beverages required by it during the License Period. Consumption of food and beverages will be allowed only in designated areas mutually agreed by YMCA and User. No food or beverages, other than water, will be allowed in activity areas such as the gymnasium and swimming pool.

8. **Supplies and Equipment.** User is responsible for providing any supplies and equipment needed for its intended use of the Facility and shall remove its supplies and equipment at the end of the License Period. YMCA shall not be responsible for any equipment or other property of User left in the Facility after the end of the License Period unless arrangements for later recovery of such property have been made with YMCA in advance.

9. **Enforcement; Security.** User shall designate in writing an individual 21 years of age or older who will be responsible for enforcing the terms and conditions of this Agreement as they relate to the activities of participants, invitees and guests using the Facility during the License Period. If no other person is designated, the individual signing this Agreement shall have such responsibility. User shall be responsible for engaging and paying for any separate security personnel that User desires to use during the License Period. User will notify YMCA in writing of the identity of any such separate security personnel. Third parties must have defined supervision procedures in place for monitoring their program participants (i.e., adult-to-consumer ratios and management of high-risk activities and locations). For joint events, clearly delineate supervision responsibilities between the organization and the third parties. The YMCA may conduct scheduled and random observations of activities and programs to ensure third parties and facility renters are following procedures during their use of organizational facilities.

10. **Clean Up.** User shall be responsible for clean-up of the Facility area(s) after each period of use and upon termination of the License Period. This includes picking up trash, sweeping and general upkeep of such areas consistent with YMCA facility standards.



11. **Damages.** User shall be responsible for any damage to the Facility incurred as a result of use contemplated by this Agreement. YMCA will have 5 business days from discovery within which to document and notify User of any such damage. In the event that User becomes aware of any damage to, or condition of, the Facility that may constitute a hazard or otherwise interfere with the intended use of the Facility, User shall notify YMCA in writing within 24 hours so that any appropriate remedial action may be undertaken.

12. **Use of YMCA Address.** User is authorized to use the address of the Facility in advertising and promotional materials with respect to User's activities at the Facility during the License Period. Publicity or statements made by User may identify the Facility as a YMCA facility, provided that such publicity or statements shall not indicate or imply that YMCA sponsors, endorses, approves of, or is in any way connected with the activities of User at the Facility during the License Period. Failure of User to abide by this provision shall constitute a material breach of this Agreement for which YMCA shall be entitled to cancel this Agreement without obligation to refund any User Fee already paid by User.

13. **Assignment.** User may not assign or transfer any of its rights or obligations under this Agreement without the prior written consent of YMCA and any instrument purporting to effect such assignment or transfer without such consent shall be void.

14. **Amendment.** No amendment to this Agreement shall be valid unless reduced to writing and signed by both YMCA and User.

15. **Notices.** Notices required or permitted under this Agreement shall be sent to YMCA and User at their respective addresses set forth in the signature blocks below.

16. **Execution.** This Agreement may be executed in counterparts who together shall constitute one and the same document. Facsimile signatures shall have the same import as manually affixed signatures. YMCA and User have executed this Agreement as of the date indicated above. User acknowledges receipt of a fully executed copy of this Agreement.

17. **Worker's Compensation.** The primary employer shall be solely liable for any worker's compensation benefits which may accrue. Verification of current certificate of workman's compensation insurance will be provided at execution of contract.

18. **Other Provisions.**

YMCA:

USER:

YMCA of Southern Arizona

Organization Name

Organization / User Name

Position

Position

Signature

Signature

Print Name

Print Name

Address

Address

Date

Date



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Center Program Area to Facility Use Agreement

YMCA will provide User with the following additional areas if User requires additional space during the leased period, subject to availability.

Swimming Pool: \$_____per hour/flat rate
Capacity_____

Gymnasium: \$_____per hour/flat rate
Capacity_____

Teen Center: \$_____per hour/flat rate
Capacity_____

Room_____: \$_____per hour/flat rate
Capacity_____

Group Cycling Room: \$_____per hour/flat rate
Capacity_____

Other YMCA Space_____ \$_____per hour/flat rate
Capacity_____

Additional cost may be added (per hour) for the following reasons:

- If a YMCA staff member is required to monitor the Facility area during the activity whether after or during regular business hours.
- In the event that any YMCA staff must clean up after Users event or class User will be assessed a minimum \$25.00 per hour cleaning fee.
- In the event that equipment or facilities are damaged due to User, there will be an additional charge for the cost of the replacement.
- Lifeguards, if needed for any activity involving the swimming pool, at the then effective YMCA rates.